

26TRCP00194 26TRCP00194

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-22

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Case Number: 26TRCP00194 Hearing Date: July 22, 2026 Dept: B

Moving

Parties: Allstate Northbrook Indemnity Company

Responding

Party: None

Petition

to Compel Arbitration of Underinsured Motorist

The Court considered the petition and opposition.

RULING

The petition is DENIED WITHOUT PREJUDICE.

BACKGROUND

On May 29, 2026, Allstate Northbrook Indemnity Company filed a petition to compel arbitration of underinsured motorist against Christopher Welch, pursuant to CCP §1281.2 and Insurance Code §11580.2

On June 9, 2026, Allstate Northbrook filed another petition to compel arbitration of underinsured motorist.

LEGAL

AUTHORITY

Under

CCP § 1281, a “written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and revocable, save upon such grounds as

exist for the
revocation of any contract.”

Under

CCP § 1281.2, “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists”

DISCUSSION

The Court finds that the petitions were improperly served. The proof of service of the petition signed and filed on May 29, 2026, indicates that it was served by email. The proof of service of the petition signed on May 9, 2026, and filed on June 9, 2026, with a hearing date of July 22, 2026 (on the caption), indicates that the petition was served by email on April 29, 2026 (before the petition was signed).

The “petition” filed on May 9 may have been intended to be a notice of hearing but there is no notice, only the date of the hearing on the caption.

Under CCP §1290.4(a), “[a] copy of the petition and written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If

the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.”

The insurance

policy attached to the petition does not state the manner of service. Thus, service within California must be made in the same manner provided by law for the service of a summons in a civil

action. Service by email is thus improper. Further, there is no notice of the hearing on the petition. Also, the petition filed on June 9, indicates a signed date of the petition after it was purportedly served on April 29.

The
petition is DENIED WITHOUT PREJUDICE.